

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #

Date of filing:

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NICHOLAS KEMELMACHER,

Plaintiff,

Plaintiff designates Kings
County as the place of trial

-against-

Basis of the venue is the Locus
of Occurrence

THE CITY OF NEW YORK, POLICE OFFICER
DENNIS USTELIMOV-Shield No. 13541 and JOHN
DOES-Police Officers as yet unidentified,

SUMMONS

Plaintiff resides at
18 Monroe Street, PH B
New York, New York 10002

Defendants.

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County of New York

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER DENNIS USTELIMOV-
Shield No. 13541
c/o New York City Police Department- 17th
Precinct
167 East 51st Street
New York, New York 10022

Dated: Brooklyn, New York
June 2, 2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
NICHOLAS KEMELMACHER ,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DENNIS USTELIMOV-Shield No. 13541 and JOHN
DOES-Police Officers as yet unidentified,Defendants.
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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF NICHOLAS KEMELMACHER**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on August 6, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on March 3, 2021.

6. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, NICHOLAS KEMELMACHER, was lawfully present at or about Foley Square, nearest its intersection with Centre Street and Worth Street, in the County, City and State of New York.

8. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, NICHOLAS KEMELMACHER, was approached and was assaulted and battered by the defendants, POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being punched, struck with a baton, slammed to the ground, struck with knees while on the ground and was forcefully placed in handcuffs. The plaintiff was taken to the 17th Police Precinct where he was held for a period of time. On July 25, 2020 at approximately 5:00 a.m., the plaintiff was issued with a baseless desk appearance and then released.

9. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, plaintiff, NICHOLAS KEMELMACHER, was assaulted and battered by defendants, POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on July 24, 2020 , and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, NICHOLAS KEMELMACHER, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, NICHOLAS KEMELMACHER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF NICHOLAS KEMELMACHER**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, NICHOLAS KEMELMACHER .

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER

DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, NICHOLAS KEMELMACHER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF NICHOLAS KEMELMACHER**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, NICHOLAS KEMELMACHER.

21. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, the plaintiff, NICHOLAS KEMELMACHER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, NICHOLAS KEMELMACHER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF NICHOLAS KEMELMACHER**

24. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on July 24, 2020 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, NICHOLAS KEMELMACHER.

26. That the defendants, POLICE OFFICER DENNIS USTELIMOV- Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff, NICHOLAS KEMELMACHER, against his will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, NICHOLAS KEMELMACHER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF NICHOLAS KEMELMACHER**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, NICHOLAS KEMELMACHER.

31. That as a result of said intentional and negligent acts, the plaintiff, NICHOLAS KEMELMACHER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, NICHOLAS KEMELMACHER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON BEHALF OF NICHOLAS KEMELMACHER

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, NICHOLAS KEMELMACHER.

36. That on July 24, 2020, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, plaintiff, NICHOLAS KEMELMACHER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF NICHOLAS KEMELMACHER**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, NICHOLAS KEMELMACHER

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for

unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the plaintiff, NICHOLAS KEMELMACHER, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF NICHOLAS KEMELMACHER**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

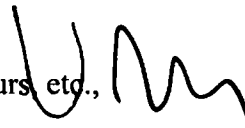
47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER DENNIS USTELIMOV-Shield No. 13541 and JOHN DOES- Police Officers as yet unidentified, herein-above alleged.

48. By the reason of the foregoing, the plaintiff, NICHOLAS KEMELMACHER , sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, NICHOLAS KEMELMACHER , demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, NICHOLAS KEMELMACHER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, NICHOLAS KEMELMACHER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, NICHOLAS KEMELMACHER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, NICHOLAS

KEMELMACHER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, NICHOLAS KEMELMACHER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, NICHOLAS KEMELMACHER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, NICHOLAS KEMELMACHER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
June 2, 2021

Yours, etc., 

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
NICHOLAS KEMELMACHER
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 20NK07-24

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
June 2, 2021



ROBERT MIJUCA, ESQ.